



United States
Attorney's Office
Western District of New York



Irondequoit man claiming to be a physician charged with fraud and illegally dispensing controlled substances

Thursday, May 22, 2025

For Immediate Release

U.S. Attorney's Office, Western District of
New York

ROCHESTER, N.Y.- U.S. Attorney Michael DiGiacomo announced today that Kevin M. Whitman, 27, of Irondequoit, NY, was arrested and charged by criminal complaint with distributing and dispensing a controlled substance, using a registration number issued to another person to obtain controlled substances, and obtaining controlled substances by fraud. The charges carry a maximum penalty of 20 years in prison and a \$1,000,000 fine.

Assistant U.S. Attorney Sean C. Eldridge, who is prosecuting the case, stated that Whitman is not a licensed physician in New York State or anywhere else in the United States and does not possess a DEA Registration Number to issue prescriptions. The criminal complaint alleges that between August 2023 and April 2025, Whitman claimed to be a medical doctor and, fraudulently and without authorization, used a DEA Registration Number belonging to Strong Memorial Hospital. Using that number, Whitman issued 177 prescriptions to nine individuals for Schedule II controlled substances, totaling 38,067 dosage units. Of these 177 prescriptions, 173 were for oxycodone. Whitman is not an employee of Strong Memorial Hospital, he did not graduate from the University of Rochester Medical School, and Whitman does not hold any professional licenses granted in New York State to practice medicine or to issue controlled substance prescriptions. During a search of Whitman's residence, law enforcement officers recovered a framed fake diploma purportedly from the University of Rochester Medical School.

Whitman made an initial appearance this morning before U.S. Magistrate Judge Mark W. Pedersen and was released on conditions.

The criminal complaint is the result of an investigation by the Drug Enforcement Administration, under the direction of Special Agent-in-Charge Frank Tarentino, New York Field Division, the U.S. Department Health of Human Services, Office of Inspector General, under the direction of Special Agent-in-Charge Naomi Gruchacz, and the New York State Attorney General's Office Medicaid Fraud Control Unit, under

the direction of Attorney General Letitia James. Additional Assistance was provided by the University of Rochester Department of Public Safety, the New York State Police, and the Brighton Police Department.

The fact that a defendant has been charged with a crime is merely an accusation and the defendant is presumed innocent until and unless proven guilty.

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Updated May 22, 2025

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HEALTHCARE FRAUD

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